



University of Gothenburg's Policy for intellectual property rights

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Summary	English translation of the University of Gothenburg's Policy for intellectual property rights created within the operations of the University of Gothenburg.

Introduction

This policy is based on the core values and goals stated in the University of Gothenburg Vision 2030: *A University for the World*, as well as the overall strategies of the university. *A University for the World* drives the university's development during the period 2021-2030 through three commitments: top-quality education and research, sustainable and knowledge-based societal development, a coherent organisation and an attractive place of work and study.

Intellectual creation, sharing of ideas, and openness are core values in the academic environment. A natural and valuable outcome of the work performed at the university is the creation of intellectual property, such as patentable inventions. This is an important aspect of the university's mission to utilise knowledge. The University of Gothenburg has long had an important role in contributing to societal development, by enabling the use in society of knowledge and intellectual property created at the university. The application of results and knowledge from the university through publications, education, collaborations, knowledge-transfer, private commercialisation, or other forms of utilisation, corresponds with the expectations on the role of the university in society. At the same time, these activities create valuable feedback to the ongoing research, education, and knowledge-creation at the university - through collaborations, new insights, and possibilities to access resources for research and education.

It is therefore in line with the mission and interests of the university to take responsibility for the professional support of utilisation of intellectual achievements, especially those protectable by intellectual property rights, in line with the ethics, morals, and core values of the university. This is done through policies and guidelines, through effective internal support, and by educating researchers, teachers, postgraduate and graduate students.

Purpose

The purpose of this policy is to, based on applicable laws and rules, clarify the position of the University of Gothenburg regarding intellectual property rights created within the university's operations. It also aims to clarify how these assets should be managed to secure the interests of the university and its employees, while at the same time promoting academic openness and the continued development and dissemination of knowledge.

Definition of intellectual property rights

Intellectual property rights mean the rights, protected by law, to use any kind of intellectual creation that has been created by a person or an organisation, including but not limited to patents, copyrights, computer programs, trademarks, and design rights. This policy aims to clarify the rights and claims to intellectual property rights which have been developed at the University of Gothenburg.

For clarity it is emphasised that the physical material or representation that carries an intellectual property right included in this policy belongs to the employer if that physical work has been created within the scope of the employment.

General principles

The “teachers’ exemption” is a principle of law that applies to Swedish institutions of higher education. This principle means that a patentable invention belongs to the employed teacher¹ who created the same, even if the invention was created within the scope of the teacher’s work at the university. The teachers’ exemption is an exemption from the main principle that the employer owns the right to the inventions of its employees (The Inventors Act (1949:345)). The University of Gothenburg also applies the teachers’ exemption on patentable inventions created by other employees than teachers if their main work is to independently perform research tasks. The same applies to employees who take part in the creation of an invention in such a way that they would be considered inventors or co-inventors. This means that other categories of employees than teachers can be included in the teachers’ exemption, for example individuals who are employed as researchers or doctoral students.

The starting point for all categories of intellectual property rights is that the creator owns the right to their works and inventions. This includes the right to commercialise or otherwise utilise their intellectual property rights, alone or together with others. As the employer, the University of Gothenburg retains the right to use the intellectual property rights as outlined in this policy, and in the *Policy for rights of use to copyright protected material*. The University of Gothenburg, through this *Policy for intellectual property rights*, renounces the claim to such other rights as would have accrued to the employer through specific articles of applicable laws. This does not include databases where the University of Gothenburg is considered to have an independent copyright, parallel with the employee’s right, based on the criteria of “substantial investment” in the Copyright Act.²³

The University of Gothenburg shall as a base principle have a free right to use any intellectual property rights that have been created by the employee within the line of work. This serves to safeguard the continuation of top-quality research and education at the university. This right to use is limited to the purposes and needs that fall within the regular operations of the university and shall remain in force for as long as those purposes and needs exist. Further, the university shall have a right to use the invention on the same terms as above when an employee has been specifically ordered to perform a task and this leads to the creation of a patentable or patented invention. The university has a right to use a patentable or patented invention that has been created by an employee for use in the university’s own operations. An example is achievements that make up a part of a pre-determined unit and in which the employer has made costly investments. If an employee chooses to use a patented invention they rightfully have at their disposal within the employment at the University of Gothenburg, this shall mean that the employee has chosen to give the university a right to use that invention for no other remuneration than the regular salary.

In all other situations the Inventors Act is applied. This means that an employee, who is not included in the teachers’ exemption according to the above, shall report inventions to their closest superior without delay when the invention falls within the scope of the university’s regular operations. The superior will determine

¹ “Teachers” mean individuals who have been employed as “teachers” in line with the *Appointment procedure for teaching posts at the University of Gothenburg*

² Copyright Act (1960:729) 49 §

³ Prop. 1996/97:111: Rättsligt skydd för databaser m.m. s. 30

the consequent management of the invention. Information about the invention is protected by confidentiality to the extent outlined in the Public Access to Information and Secrecy Act (2009:400) chapter 31, § 21.

Any agreement between the University of Gothenburg and the employee regulating the university's right to use the invention shall be clearly laid out, preferably in written form.

There are some situations where claims to intellectual property rights fall under other regulations than this policy. This may especially be the case of commissioned research and externally funded research, where the funder makes demands on the division of ownership and use rights to project results. Further, there may be situations where the University of Gothenburg needs to take on the control for intellectual property rights due to mandatory laws, such as laws on personal data or ethics approval. In these cases, the rights of the creator may need to be restricted in accordance with those laws.

Notwithstanding the use rights of the university, the employee always has the right to commercialise or otherwise utilise, alone or together with others, intellectual property rights which have been created and are owned by the employee. It is the responsibility of the employee to ensure that such activities do not infringe the rights of third parties. If an employee makes improvements or developments to intellectual property rights that originally fall under this policy within the scope of a secondary occupation (or otherwise outside the scope of the employment at the university), such improvements or developments shall not be included in the use rights of the employer. If the employee chooses to introduce the invention into the work at the university the use right stated above shall apply.

The University of Gothenburg's rights to trademarks, design rights and circuit patterns

The University of Gothenburg shall own the rights to trademarks (marks and company names) that have been created within the scope of the university's operations.

The University of Gothenburg makes no claims to design rights or circuit patterns that have been created by the employees independently and within the scope of their research tasks. The university's use rights to design rights and circuit patterns follows what is stated above regarding patents.

Management of intellectual property rights in collaborations

All collaborations at the University of Gothenburg shall be in line with the university's overarching core values, and with applicable rules, guidelines, and ethics principles, to ensure relevance and quality of the research and education. Written agreements shall be entered into by the University of Gothenburg and external parties before the collaboration or commissioned work is started. The university shall ensure that the agreement protects important academic principles, such as the right to continued research and education, the right to publish, clarified ownership to background and results, and fair and reasonable conditions for transfer of intellectual property rights.

Support functions at the University

The Grants and Innovations office is the university's support function for questions related to commercial law, agreements, funding, and innovations. This also includes support for questions regarding intellectual property rights and various forms of utilisation of research results created at the university.

The university holding company, GU Ventures AB, offers support to the employees of the university regarding commercialisation of intellectual property rights, and can invest in commercialisation projects and utilisation of innovations.